

COMMERCIAL LEASE AGREEMENT BETWEEN INDRA SYSTEMS PVT. LTD. AND MERIDIAN TECHNOLOGIES INC.

Between: **Indra Systems Pvt. Ltd.** (Lessor) and **Meridian Technologies Inc.** (Lessee)

Effective Date: 2023-09-16

Termination Date: 2021-12-21

Governing Law: the laws of India

1. Severability

If any provision of this Agreement is held to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable. The validity and enforceability of the remaining provisions shall not be affected.

2. Confidentiality

Each Party agrees to keep confidential all Confidential Information received from the other Party. This obligation shall survive termination of this Agreement for a period of three (3) years. Disclosure is permitted only to employees or advisors who have a need to know and are bound by obligations at least as restrictive as those set forth herein.

3. Audit Rights

Meridian Technologies Inc. or its authorised representative shall have the right, upon giving fifteen (15) days' written notice, to audit Indra Systems Pvt. Ltd.'s records relating to the Services and payments under this Agreement. Such audit shall be conducted during normal business hours and shall not unreasonably disrupt Indra Systems Pvt. Ltd.'s operations. The cost of the audit shall be borne by Meridian Technologies Inc., unless the audit reveals an overcharge of more than five percent (5%), in which case Indra Systems Pvt. Ltd. shall bear the cost.

4. Scope of Services

Indra Systems Pvt. Ltd. shall provide to Meridian Technologies Inc. the following services as detailed in Schedule A attached hereto: project management, technical implementation, quality assurance, documentation, and post-deployment support. Any modification to the scope of services must be agreed in writing by both Parties.

5. Intellectual Property

All intellectual property rights in deliverables created specifically for Meridian Technologies Inc. under this Agreement shall vest in Meridian Technologies Inc. upon full payment. Pre-existing intellectual property of each Party shall remain with that Party. Indra Systems Pvt. Ltd. grants Meridian Technologies Inc. a non-exclusive, royalty-free licence to use any pre-existing intellectual property embedded in the deliverables solely for Meridian Technologies Inc.'s internal business purposes.

6. Data Protection

Each Party shall comply with all applicable data protection laws and regulations. Indra Systems Pvt. Ltd. shall process personal data of Meridian Technologies Inc.'s employees or customers only as necessary to perform the Services and strictly in accordance with Meridian Technologies Inc.'s written instructions. Indra Systems Pvt. Ltd. shall implement appropriate technical and organisational measures to protect such data.

7. Dispute Resolution

Any dispute arising out of or in connection with this Agreement shall first be submitted to senior management of both Parties for resolution within thirty (30) days. If unresolved, disputes shall be referred to binding arbitration under the Arbitration and Conciliation Act, 1996. The seat of arbitration shall be Delhi. The award shall be final and binding.

8. Assignment

Neither Party may assign or transfer any of its rights or obligations under this Agreement without the prior written consent of the other Party. Any purported assignment in violation of this clause shall be null and void. Notwithstanding the foregoing, either Party may assign this Agreement to an affiliate without consent, provided it gives thirty (30) days' prior written notice.

9. Insurance

Indra Systems Pvt. Ltd. shall, throughout the term of this Agreement, maintain at its own cost: (a) professional indemnity insurance of not less than Rs. 1,25,00,000 (Rupees One crore, twenty-five lakh Only) per occurrence; (b) public liability insurance of not less than Rs. 1,25,00,000 (Rupees One crore, twenty-five lakh Only) per occurrence; (c) employers' liability insurance as required by applicable law. Indra Systems Pvt. Ltd. shall provide evidence of such insurance upon request.

10. Limitation of Liability

In no event shall either Party be liable to the other for any indirect, incidental, special, consequential, or punitive damages, including loss of profits or data, even if advised of the possibility thereof. The aggregate liability of either Party under this Agreement shall not exceed Rs. 1,25,00,000 (Rupees One crore, twenty-five lakh Only). This limitation does not apply to obligations arising from Clause 6 or indemnification obligations.

11. Subcontracting

Indra Systems Pvt. Ltd. shall not subcontract any material part of the Services without the prior written consent of Meridian Technologies Inc.. Where subcontracting is permitted, Indra Systems Pvt. Ltd. shall remain fully responsible for the performance of the subcontractor and shall ensure the subcontractor is bound by obligations equivalent to those in Clause 6 and Clause 4.

12. Definitions

In this Agreement, the following terms shall have the meanings ascribed to them herein. "Agreement" means this lease Agreement dated 2023-09-16 between Indra Systems Pvt. Ltd. and Meridian Technologies Inc.. "Services" means the services described in Clause 1. "Confidential Information" means any information disclosed by either Party that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information.

IN WITNESS WHEREOF

Lessor

Indra Systems Pvt. Ltd.

Signature: _____

Name: _____

Title: _____

Date: _____

Lessee

Meridian Technologies Inc.

Signature: _____

Name: _____

Title: _____

Date: _____